

5 Examination Papers

Question 1

Date: September 3, 2014
To: Michael Hart
From: Cheryl Gourley
Subject: New class-room extension, Christchurch School

Dear Michael,

Thank you for your email, I hope you are well.

All registered architects are required to follow the ARB's Code and Standards. NDG architects are a RIBA listed chartered architectural practice and we must abide by the RIBA's Code of Conduct as one of our professional obligations. The intent of adhering to these codes is to promote professional conduct and best practice. Principle 1 of the RIBA Code of Conduct encourages 'honesty and integrity.' In this case we should, firstly refer to Principle 1.1 of the code which says,

"The Royal Institute expects its members to act with impartiality, responsibility and truthfulness at all times in their professional and business activities."

I think the key point, in our case, of the principle listed above is *"truthfulness."* I believe it is in our best interest to contact Roland Construction and inform them of them of an uncertain situation should it arrive. Also, it is import to note that must not exclude any details which might affect the confidentiality of the situation, but never the less inform the contractor of our current standing with the client.

We should also refer to Principle 1.2 of the RIBA Code of Conduct which lists;

"Members should not allow themselves to be improperly influenced either by their own, or other', self-interests."

I believe that it is in our interests by teaming up with Roland Construction on this job would be majorly a financial reasoning. Due to the incentive and the sensitive nature of the potential project I believe that actively engaging to work on the project NDG Architects would be inadequately influenced to do so. A action against Principle 1.2 listed above.

In addition we should refer to Principle 1.4 which states;

"Members should avoid conflicts of Interest. If a conflict of arises, they should declare it to those parties affected and either remove its clause or withdraw from that situation."

In acknowledging this principle I believe that partnering with Roland Construction on this project may be a conflict of interests in relation to the client and the current investigation regarding the accident. This should be avoided, as specified in the first sentence of the Principle 1.4.

ARB Architects Code: Standards of Conduct and Practice 2010 also mentions the issue of conflict of interests in Standard 1.3 which says;

“Where a conflict of interest arises you are expected to disclose it in writing and manage it to the satisfaction of all affected parties. You should seek written confirmation that all parties involved give their informed consent to your continuing to act. Where this consent is not received you should cease acting for one or more of the parties.”

The Standard set out above further emphasizes the need to contact all parties involved in order to gain consent for continuing with the bid if we indeed choose to team up with Roland Construction.

In addition, in upholding our honesty and integrity in the current situation we should refer to Principle 1.5, which states;

“Members should respect confidentially and privacy of others.”

As I highlighted this is an issue of sensitivity. As liability is yet to be established it would be in our best interest to legally avoid disclosing any details which we may be associated with at a later date. Moreover, in relation to the principle above the client may not wish the situation to become public as they are acting as a stakeholder in the project and it may be unfavorable to the school’s reputation. For these reasons when we respond to the contractor we should be careful to omit any particulars or details which may impact on the confidentiality of the situation.

Moreover, as Mr. Henratty from Roland Construction is asking us to join in a commercial venture, changes in the RIBA’s Code of Conduct (as recent as the 1980’s) now allow us to do so. Prior to this the Code of Conduct continued to reflect the architectural professional’s position independent from that of commercial interests specifically stating that “architects could not act as contractors or join contracting organizations.” The RIBA codes have since been changed due to changes in attitude in the construction industry and the increase in commercial pressures.

If we were to team up with Roland Construction on the job there indeed some actions to take to ensure our professional integrity. Below is a list of actions we should take;

- Make sure that we, the architects deal with the previous complaint as promptly and as appropriately as possible.

- Inform Roland Construction of the current situation regarding the possible liability on a previous job concerning the same client.
- Seek legal advice.
- Inform the client (Board of Governors) of the potential partnering with Roland Construction for the D&B bid asking for consent to continue on the bid.
- Pay due regard to the future design in relation to the intended users. In other words, pay close attention to the health and safety issues regarding the hand over to the public so similar accidents will not occur again.
- Make sure that personal and professional finances are managed prudently incase litigation may occur regarding the accident on the previous project.
- We should also continue to promote the standards set out by the latest versions of the Architects Code: Standards of Conduct and Practice, and the RIBA Code of Conduct on the project.
- Cease all work if consent is not given.

I hope this information helps and aids your thought process.

Yours sincerely,

Cheryl
Architectural Assistant

Question 2

Date: September 3, 2014
To: Belinda Cater
From: Cheryl Gourley
Subject: Community Performing Arts Centre – Shareholders

Dear Belinda

Thank you for your email. I have produced a colour diagram categorising who we think the anticipated stakeholders will be. Please see attached.

I have listed below the best ways in which I think we should communicate with the shareholders.

Stakeholder engagement, liaison and approvals will be vital to the success to the development of the Performing Arts Centre.

- Keeping an effective and open line of communication and feedback with the stakeholders of the Performing Arts Centre is really important. The stakeholders will be both passive and active throughout the project development and we will begin to analyse their position and interests when we are putting together the brief.
- We will communicate with the stakeholders of the Performing Arts Centre in various ways to dependent on the type stakeholder:
- **Meetings**
This will be one of the most common ways to correspond with all of the stakeholders. We can communicate with different audience sizes and create a dialogue with everyone and will be the best way to provide ongoing feedback. This will be the best way to communicate to avoid misinterpretation. We believe this will be one of the most effective ways to communicate about practical matters such as maintenance, servicing and security.
- **Conference Calls**
We understand stakeholders are busy and may not have time to travel to meetings. Conference calls are a good way to facilitate a conversation for many people to dial in to. This might be more beneficial for liaising with government and bank funding shareholders
- **Emails and Newsletters**
This one-way communication will utilise progress updates and feedback to stakeholders. We would like to establish a schedule to which we send emails and newsletters so shareholders are aware of when they will receive communication and feedback.

- **Lunch Meetings**

Casual environments are good for communicating, getting feedback and ideas from direct stakeholders, such as Governors and teachers.

- **Sporting Events**

Active events are good ways to create a forum for brainstorming and feedback on ideas, especially because the project is performing arts centre. Such events we believe will be instrumental when communication with future pupils of the performing arts centre. We believe being active strengthens communication and we hope it will be a successful method in developing stakeholder's support.

In response to your email, I have also put together a programme that anticipates what will take place up until RIBA Work Stage Three.

Stage 0 – Strategic Definition

We will identify the client's hopes and intentions and we will in parallel produce a strategic brief. We need to review the experience of our office members and decide which of the architects will be best suited on the project to priorities a team. At this stage, we should begin to develop a draft project programme plan.

Subsequently, we should begin to review feedback from other community and school projects that we have worked on in the past. I suggest we review feedback from previous work we have undertaken for Madchester Academy, and I think we can review the refurbishment of Christchurch School.

Town planning should be considered at this stage. It will be important to organise a meeting to discuss pre-application planning.

Stage 1 – Preparation and Brief

As outlined, during this stage it will be important establish relationships with the stakeholders of the Performing Arts Centre and to begin communication. As I already highlighted, we should get into a routine of having regular communication with shareholders.

We should develop both Project and Quality Objectives along with Project Aspirations. I think it will be important for Sue to outlay sustainable aspirations and in turn, perhaps you can look at the Project Budget. Once we have decided who will be on the design team for the project, I suggest we undertake feasibility studies and I think it would be good experience for the Year out students to review site information.

We should prepare a Handover Strategy along with Risk Assessments.

Stage 2 – Concept Design

During the concept design stage we should outline proposals for structural design, building services and outline specifications and preliminary Cost Information. I suggest, as a team, we consider a Construction Strategy, including off site fabrications and develop a Health and Safety Strategy. Who are the structural engineers for this project? We should arrange a meeting in advance. I think at this stage it would be extremely useful to look at our Project Strategies in relation to the Design programme.

At this stage we really need to agree alternations to the brief and issue the Final Project Brief to all of the Shareholders along to the design team.

Perhaps you and Sue can begin to prepare the Sustainability Strategy, Maintenance and Operational Strategy, and review a Handover Strategy along with Risk Assessments.

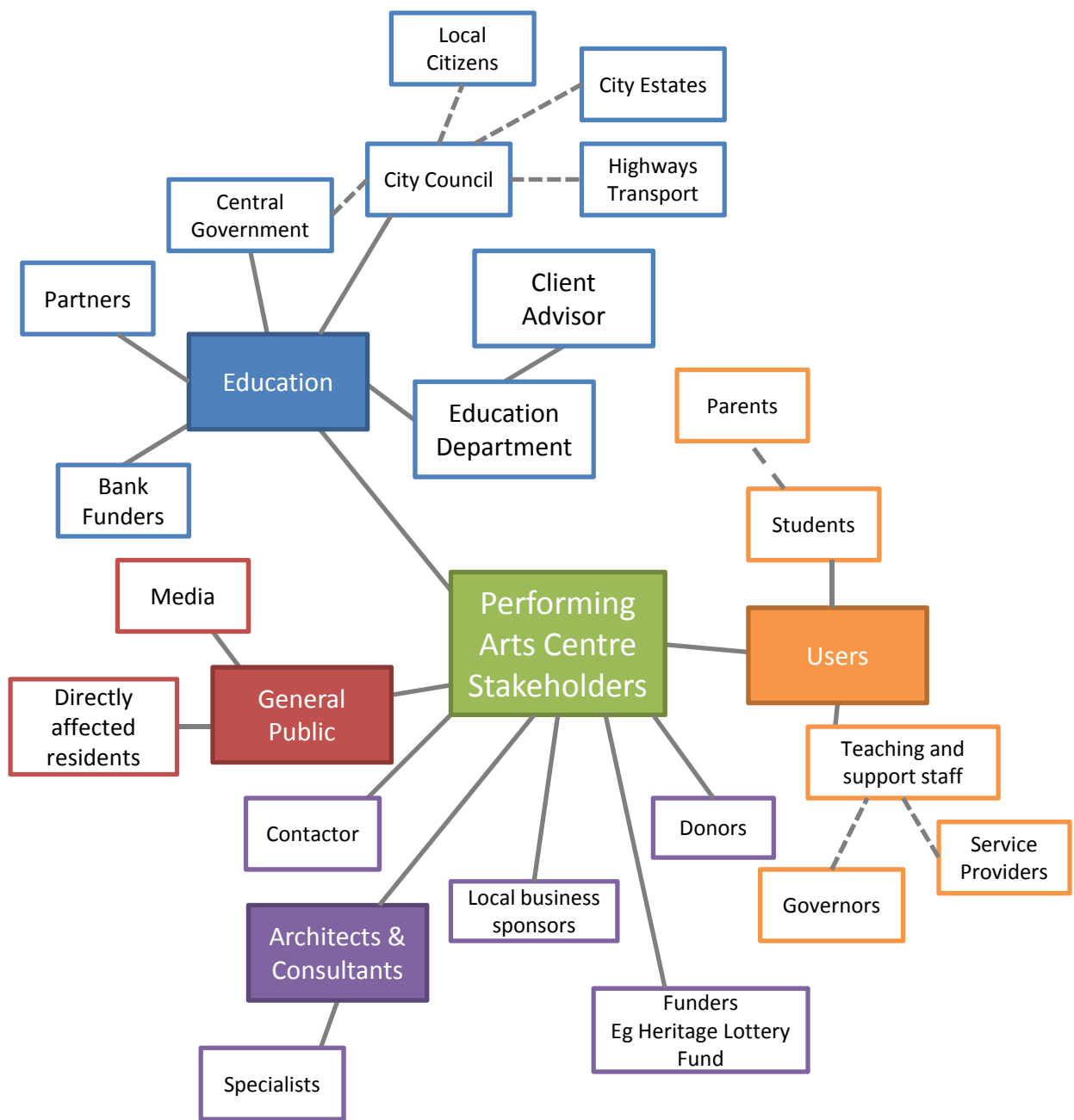
I hope this information helps.

Yours sincerely

Cheryl
Architectural Assistant

Question 2

Diagram to show the anticipated stakeholders of the Community Performing Arts Centre



Question 3

MEMORANDUM

Date: September 3, 2014
To: Michael Hart
From: Cheryl Gourley
Priority : High
Subject: 4 Classroom Refurbishment

Dear Michael

I understand the seriousness of your email. Yes, we issued a practical completion certificate with the including the finger guards in the list of outstanding items. The school needed to be in possession of the classroom in to be ready in time for the start of the academic year. Had we not of issued the practical completion certificate, the class of students would needed to be relocated to another classroom, which may have meant that temporary premises would have to been hired out. A school that does not open at the start of the academic year will have huge knock on effects and this is the sole basis that we considered the finger guards to be a “minor item” which need not hold up handover.

We need to contact our PI Insurer’s incase to notify them of circumstance that may lead to a claim by Christchurch School and the also by the parents of the child who was involved in the accident. We need to ensure that we are familiar with the wording with the particular requirements of the policy wording, since they vary and we need ensure that we have insurance should such a claim arise. I strongly suggest that you advise the contractors to to notify their PI Insurers too.

The CDM Coordinator should have advised the HSE on the incident, and they should come to the school to investigate the accident. I understand that the HSE is a regulatory body and they advise on compliances with legislation regarding health and safety issues. The HSE have the duty and authority to react in several ways, including the advising the statutory authorities to stop the school from using the classroom, or, imposing penalties. This would mean that the school might loose the room until it is re-inspected, and therefore temporary accommodation would have to be found. HSE may prosecute NDG Architects, so I have already suggested, please notify the insurers.

From your description, it sounds like the incident was serious and could happen again, if the finger guards are not fitted to the doors immediately. However, I think it should be simple to expedite the installation of the finger guards to the doors, either temporary or permanent, such that the HSE will be satisfied that there is no remaining hazard.

I have noted from the HSE website that the CDM Coordinator is responsible to “...ensure that designs for workplaces meet requirements of the Workplace Regulations.” As I have highlighted, they are responsible in notifying the HSE about the project, and they are to prepare the health and safety file. The health and safety file is supposed to be a relevant, user-friendly document suitable for use at the end of the construction phase. In my opinion, I do not think that it matters whether the file was issued, as it would have

identified that the finger guards were not in place, but should have been. In such case, this would not relieve the school staff of the duty of care to the pupils, and I do not think this would have prevented the incident.

In hindsight, we should have not issued practical completion and we should have explained the risks to the school such that the finger guards were not installed. We should have asked the school for a small extension of time and expedited the installation of the finger guards. This would have ceased any opportunity for risk of injury to the children.

Please let know how I can assist on this matter further.

Yours sincerely,

Cheryl
Architectural Assistant

Question 4

NDG Architects Ltd
Wharf Mill
Paccadilly
Madchester
MAD PPA

Christchurch School
Madchester

September 3, 2014
RE: Six-Classroom Extension

Dear Mr Henratty

In reference to our last conversation in agreeing a fee for the drawing production we have further put together a services proposal along with a fee.

The classroom extension has already received planning permission, which is incredibly good to hear. I understand that you are pleased with the concept design and we can move the design through to next working stage.

In our services, we will develop the concept design that you have agreed on we will implement UK Building Regulations. These are a statutory instrument to seek to ensure that the policies are set out in the relevant legislation are carried out. Building regulations are required for building work in the UK. We will prepare and submit the Regulations.

We will coordinate and update proposals for the structural design and building services systems as part of the Developed Design process.

Under this design and build basis, NDG are responsible for developing the design through to construction, and then it is the responsibility of Roland Construction to deliver the works. However, NDG Architects seek to a role in the construction and endeavor to oversee the design practical completion.

Under the design and build, unlike the traditional approach, we will not be obliged to carry out health and safety strategies. As the Client, you are obligated to appoint a CDM Coordinator to oversee the project. The Contractor is also responsible for preparing and drafting the Construction Strategy. They will need to include off site fabrication allowances.

We will prepare a project programme in due course and I hope this will further help to highlight the responsibilities of NDG. Attached is a calculation of our fee proposal for our services. I look forward to speaking with you in due course.

Kind Regards,

Michael Hart
Associate Director

Question 4

NDG Architects – Fee Proposal

Please see below fee calculations for the fee bid of Christchurch School

-SALARY COSTS P/ANNUM

Director	£52,000
Associate Director	£38,000
Architect	£35,000
Architect	£30,000
Architectural Technologist	£27,000
Architectural Assistant	£24,000
Year Out Student	£15,000

Total Salaries £191,000

227

(number of working days P/Year)

= £841 fee per Man Day

-FEE BID PROGRAMME (IN MONTHS)

RIBA Work Stages	1	2	3	4
Design Development (3)	x			
Technical Design (4)	x	x		
Specialist Design (5)		x		
Tender		x		
Construction (6)		x	x	x

-FEE BID

RIBA Work Stages	Period (Months)	Man days
Developed Design (3)	1	15
Technical & Specialist & Tender (4 + 5)	2	35
Construction (6)	3	30
Lump Sum at £841/day + Profit (50%) + VAT (20%) + NI (12.8%)		80 Total Man days £67280 +£33640 +£13456 +£8612
	TOTAL FEE	£122,2988

Question 5

MEMORANDUM

Date: September 3, 2014
To: Sven Berg
From: Cheryl Gourley
Priority: High
Subject: Richard III College

Dear Sven

This is a serious matter. After thoroughly reading your email and understanding the situation, I think that the contractor, namely the subcontractor, is primarily responsible. As you have highlighted 'the problem was caused as a result of the tank not being installed proper', which his son was responsible for installing.

Moreover, I think we may have to share some of the responsibility. As the Mr Rivers points out in his letter, we did locate the water booster tank above the reading rooms, 'a very sensitive area' and we *did not* include a waterproof floor in design. Obviously, this is not entirely a design fault, but had we included a waterproof floor in the design, there may have been less water damage.

Obviously, we must liaise with the contractor to rectify the problem so the Library can be in use as soon as possible. But, firstly, since the fault has not yet been entirely identified, an investigation needs to be carried out to determine whose fault it was; whether it was a design fault by us, or the contractor's/sub-contractor's fault, and we must ensure that the contractor does not carry out any repair work until the insurers have carried out their investigations.

We must contact our PI Insurer's in case to notify them of a circumstance that may lead to a claim, and we should advise the contractor to do the same. The contractor should also notify the contract administrator and the employer of the details of the damage. After inspection has been made by the insurers the contractor is then obligated to make good the damages and continues with the works.

I am unsure which Insurance Option was selected, A, B or C, but under Option C either party has the right to terminate the employment of the contractor if it is 'just and equitable' to do so in which case the provisions of clause 8.12 will apply. All monies due under the insurance policy are paid direct to the employer. However, I do not think this will be such case as the contractor has had a good relationship with the school over the years and this is the first instance of a failure.

In addition I have drafted a letter to Mr. Rivera. I hope this helps. Please let me know where I can continue to assist with this matter

Yours sincerely,

Cheryl

NDG Architects Ltd
Wharf Mill
Paccadilly
Manchester
MAD PPA

Richard III College
St Peters Way
Rochdale
OL 2RT

September 3, 2014
RE: Richard III College

Dear Mr. Rivers

I am sorry to learn about the failure of the roof void in the college library and I hope we can help to resolve this problem in the best possible way. I have been in contact with the contractor and he is fully aware of his obligations from here on in. I will assist where possible and I hope the contents of this letter will help you to understand your current contractual position with this matter.

In summary, the contractor's insurers have been informed and contractor must stop the works until an inspection has been carried out by insurers.

The contractor will notify you and the contract administrator of the details of damage and the insurers will be immediately informed. Once inspection has been made by the insurers the contractor is then obliged to make good the damage and continue with the works.

I would like to point, under the section Sub-Contracting section that the Contractor is responsible for Works, and not the sub-contractor,

Clause 3.7 The Contractor shall remain responsible wholly responsible for carrying out and completing the Works.

There should be a subsequent contract in place between the contractor and sub-contractor;

Clause 3.9 The Contractor shall engage the sub-contractor using the relevant version of the JCT Standard Building Sub-Contract.

Under the contract, please be aware that it is forthwith the responsibility of the contractor to deal with the matter.

The contractor is required to carry professional indemnity insurance under Section 6 Injury, Damage and Insurance of the contract. The level and amount of cover will be inserted into the contract particulars. Under clause 6.2 it states that the;

Contractor is liable and shall indemnify that the Employer against any expense, liability, loss, claim or proceedings in respect of any loss, injury or damage arises out of or in the course of or by reason of carrying out the Works.

This means that Contractor should have sufficient PI Insurance against the expense for this problem and the Contractor will cover the damages. I would like to highlight once again, that the Contractor's insurance will cover the failure of Works and that the school will not be in financial loss due to this occurrence.

The Contractor now has an obligation to notify the delay of progress to the Works under Clause 2.27

In addition, under clause 2.29.10, the contractor is entitled to an extension of time for delay caused by loss or damage due to one or more of the 'Specified Perils' and this entitlement extends to damage caused by the Contractor's negligence.

Before claiming for liquidated damages as we have not issued the Non-Completion certificate, given your long-standing relationship with the contractor, I suggest you choose a different, less invasive form of action. As the contract administrator, we can grant you the extension of time in order to complete the works. By this, the contractor is therefore forthwith obligated to complete the works, but you as the employer, will not be able to claim for liquidated damages.

Please do not hesitate to contact me and I hope we can resolve this issue with the highest professionalism.

Kind Regards

Sven Berg
Architect

Question 6

Date: September 4, 2014
To: Belinda Carter
From: Cheryl Gourley
RE: House refurbishment for Mr & Mrs Laanders

Dear Belinda

It is a shame to hear about the complaint from one of our clients. I have thoroughly read and understood the email and drafted a report setting out the key issues whether I think the practice is at fault or not.

I have referred to the JCT Intermediate Building Contract (IC) that is in place between the clients and NDG Architects. Since we issued the Final certificate, the client has the right to challenge is within 28 days of issue, stated in Clause 1.9.2 in the IC11, which they have exercised. As the complaint occurred in the 28 day period the client has the rights to proceed the matter with arbitration, however, had the dispute been outside of the 28 window, this would no be possible. Therefore, it is likely that the client will claim for work and/or materials, which were not in accordance with the contract. The items in specified to us by the client, the stove in this case, should not have been given to the contractor as a listed item for the contractor to add it into this specification and included in an interim certificate prior to the project delivery.

Under clause 2.3 of the IC11 contract, the contractor is obligated to make good any defects, which appear and are notified by the architect. However, in this circumstance, the defects are limited to those which resulted from the works not having been carried out in accordance with the contract. This does not include defects that may have been due to errors in the design information provided to the contractor.

If NDG Architects, in agreement with the client, decide to take responsibility for the defective work, then it should be confirmed in writing the amount to be deducted from the contract sum in response to clause 2.30 and 4.8.3 of the IC11 contract. If a sum is agreed, it would very unlikely that the client would be able to claim for continual problems or additional corrective work. The contract does not state what should happen regarding the defects after the issuance of the final certificate. However, it is clear that in responding to clause 2.30, that NDG Architects will no longer have the power to instruct that these faults are made good.

As you have mentioned, Mr Laanders is intending on complaining to the ARB and RIBA. I have read terms of code of conduct would like to point out where NDG Architects stand in this situation. Firstly, Standard 2.3 in the ARB Code: Standards of Conduct and practices relates to unapparent communication between NDG Architects, the designer, and the contractor in terms of the correct specifications for the stove and the flu dimensioning:

'You are expected to ensure that the necessary communication skills and local knowledge are available to you to discharge your responsibilities.'

RIBA Code of Professional Conduct 2 Principle states:

Members should ensure that their terms of appointment, the scope of their work and the essential project requirements are clear and recorded in writing. They should explain their implications of any conditions of engagement and how their fees are calculated and charged. Members should maintain appropriate records throughout their engagement.'

This Principle states that the scope of works and project requirements, which includes the specification, and how they should be recorded in writing. It seems in this case, the specifications for the new stove, given by the client were not recorded, nor transferred to the contractor accurately.

Since Mr Laanders has said he intends to complain to the RIBA and ARB, I have looked at the Codes of Conduct in relation to this. The RIBA Code of Professional Conduct, Principle 3.5 states:

'Members are expected to have in place effective procedures for dealing promptly and appropriately with disputes or complaints.'

In addition, the ARB Code: Standards of Conduct and Practice state in Standards 10.1, 10.2, 10.3:

"You are expected to have a written procedure for prompt and courteous handling of complaints which will be in accordance with the Code and provide this to clients. This should include the name of the architect who will respond to complaints." 10.1

"Complaints should be handled courteously and promptly at every stage; and as far as practicable in accordance with the following time scales:

A) An acknowledgement within 10 working days from the receipt of a complaint; and

B) A response addressing the issues raised in the initial letter of complaint within 30 working days from its receipt." 10.2

"If appropriate, you should encourage alternative methods of dispute resolution, such as mediation or conciliation."10.3

NDG Architects should be sure of the position, and if Mr. Laander makes an official complaint to RIBA and/or ARB, we should be in a suitable position to professionally defend ourselves.

Unfortunately, I think NDG Architects are responsible in this case. It was our duty to review and update the specifications of the given to use by the client, and implement in to our design, and continually to communicate the changes to both the contractor and Building Control. I think that the client has the right to claim against NDG Architects for the costs to rectify the problem, and we should inform our insurers of the notice. Our PI Insurance should cover the error but we should note to check the wording of the policy as there may be some exclusion due to design defect. I think NDG Architects should seek professional

legal advice at the first possible instance and it is our responsibility to inform the client and the contractor that we are undertaking this.

Please let me know if I can assist any more on this matter.

Yours sincerely,

Cheryl
Architectural Assistant

Question 7

Date: September 4, 2014
To: Michael Hart
From: Cheryl Gourley
RE: Barn Conversion – Work Stages

Dear Michael,

This sounds a potentially very exciting project. At your request, I have drafted a plan against the RIBA Plan of Work 2013, outlining the services the office should provide for the new family home design,

Stage 0 - Strategic Definition

This initial stage is used as a study to help ensure that your business case and strategic brief has been adequately developed before we move on and develop the initial project brief. Below is a list of fundamental tasks, which NDG Architects will carry out:

- We will identify your Business Case and the bases of the Strategic Brief by having an interview and recording your ambitions for the project.
- Develop thoughts for assembling the project team in relation to the size of your project and complexity of the new home.
- We will host pre-application discussions with relevant authorities to gaining successful approval.
- We will create a project programme with you, which will include time allowances for the briefing, design, construction and post-completion stages.
- Review feedback from similar previous projects NDG Architects have designed, and begin to gather the same information from the rest of the project team with relevant experience.
- Review your sustainability needs for the family home
- NDG Architects will then generate a Strategic Brief from this information, along with input from you and your family.

Stage 1 – Preparation and Brief

During the Preparation and Brief stage we take the information previously collected from you regarding and then further develop it. We also set up the general bases for the new project, including the contract initiation and resource management.

- NDG Architects will begin feasibility studies with information gathered about the new site

- Prepare project roles table, a contractual tree and continue assembling project team
- Review and develop the initial project programme with any updated information.
- We will begin to prepare handover strategy and risk assessments regarding your new home.
- Host updated pre-application discussions.
- Design the responsibility matrix, exchanges information for the project team, develop a project execution plan (with proposed sub consultants), and set up common strategies and common standards to be used within the project team.

Stage 2 – Concept design

During this stage NDG Architects will develop the initial concept design parallel with the requirements, which we have already set out in the initial project brief.

- Prepare concept design as well as proposals for structural design, building services, and produce basic cost information. Project strategies are formed with the design programme and we will issue the final project brief to you.
- Now that we have a chosen procurement strategy we can finalise the project team.
- Review and update the project programme.
- Begin to prepare planning applications.
- Review handover strategy and risk assessments
- Identify key sustainability areas which we intend to focus on
- At the stage completion we will communicate with all parties the current concept design, project strategies, current cost information, and the now finalized project brief.

Stage 3 – Developed Design

At the Developed Design Stage, we will further develop the concept design and communicate with the project team. By the end of this stage the architectural services and the structural design will have also have been developed.

- We will have a further developed cost plan and will update the design programme.
- Update the project programme in relation to the procurement.
- We will prepare developed design with coordinated and integrated updates for structural and building services.
- Submit planning applications
- Review handover strategy and risk assessments and importantly the project strategies.
- Undertake formal sustainability assessment on the design. Identify subjects for improvement.
- At the stage completion we will communicate with all parties the current developed design, building services, and current cost information.

Stage 4 – Technical Design

NDG Architects will further develop the architectural design and coordinate the development of structural and building services.

- We will prepare Technical design in accordance with the Design responsibility matrix.
- Coordinate with the project team in relation to the procurement strategy.
- Update the project programme in relation to the procurement process.
- Review and address any outstanding planning application issues.
- Review and update handover strategy and risk assessments and importantly the project strategies.
- Review formal sustainability assessment on the design.
- Begin to specify technologies suggested and incorporate into design.
- At the stage completion we will communicate with all parties the current technical design, building services, and current cost information.

Stage 5 – Construction

During this stage the building will be constructed onsite with accordance with the construction programme. In a traditional procurement process we will be following onsite.

- We will oversee onsite construction and resolve any design queries from the construction team.
- We will continue the administration of the construction contract including inspections and interim certificates.
- Update the project programme in relation to the procurement process.
- Review and update sustainability strategy, handover strategy and risk assessments.
- Develop sustainable strategy for the developer to incorporate during construction.
- Supply 'as-constructed' Information

Stage 6 – Handover and Close Out

The priority of NDG Architects at this stage is to deliver a successful handover of the project

- We will conclude administration of the construction contract including inspections and completion certificates.
- Carry out activities listed in the sustainability strategy, handover strategy and risk assessments.
- Assist with the final sustainability certification.
- Update 'as-constructed' Information

Stage 7 – In Use

Also known as post occupancy studies, this stage takes the opportunity to harness the project the design information and communicate for the success operation of the building.

- We will undertake In Use services in accordance with the Schedule of Services.
- Conclude sustainability strategy, handover strategy and all risk assessments.
- Review project performance and project outcomes.
- Update 'as-constructed' Information in response to client feedback.

I have developed a list of the detailed services NDG Architect's will provide in Work Stages 0 & 1.

Stage 0 - Strategic Definition

The Business case is an accumulation of information including supporting information, financial appraisals and other key background information. It becomes a list of considerations, which we have compiled to help us understand and further develop the proposal. The objective of the strategic brief is for NDG Architects to gather necessary information. In this case NDG will consider aspects such as the site, build conditions, some key project out comes as well as some initial considerations for the project programme and starting to assemble the project team.

Procurement;

At this stage NDG Architects will select a procurement route which we feel is the most suitable for this project. We believe traditional procurement is the best approach, because as it is your first time using an architect and for the following reasons:

Quality – You specify your level of quality and the contractor must achieve it.

Complexity – very straight forward means of procurement

Price – consider two stage tendering

Flexibility – You control design any changes you would like to make.

Certainty – High level of certainty in terms for time and price.

Responsibility – Limits confusion with a clear cut line between design and construction.

Risk – Generally fair and balanced between all parties.

Stage 1 – Preparation and Brief

This stage includes business case, sustainability aspirations and other aspects, which may influence the brief preparation, and in turn, the concept design. This will also include quality objectives that set out the quality aspects of the project.

Procurement;

NDG Architects will prepare a Project Roles Table, which sets out the roles required on a project and also defining the stages during which the roles are required, also, the parties

responsible for carrying out these roles. We will also prepare a contractual tree, which is a diagram that explains the contractual relationship between the client and the other parties involved in the project.

I hope this helps. Please let me if I can further assist for the meeting with Mr. and Mrs. Oldsworth.

Yours sincerely,

Cheryl
Architectural Assistant

Question 8

Date: September 4, 2014
To: Michael Hart
From: Cheryl Gourley
RE: Listed Library in Madchester

Dear Michael

I think it is important for the community group to understand that when a building is listed, it is listed in its entire entirety, which means both the exterior and interior are protected. In addition, any objects or structure fixed to the building, and any object or structure within the curtilage of the building, which although not fixed to the building, forms part of the land and as done since before 1 July 1948, are treated as part of the listed building. Because all listed buildings are different and unique, what is actually covered by a listing can vary.

I suggest you check what elements of the public library are listed with the local planning authority of Madchester. I think you should explain to the group that the local planning authority is the local district authority in regions with county and district councils. On the Planning Portal website there is a section about listed buildings which I think you can refer the group to.

The local community group should also be aware of the Planning Listed Buildings and Conservation Areas (LBCA) Act 1990. This is an Act of Parliament of the United Kingdom that altered the laws on granting of planning permission for building works, notably including those of the listed buildings and is of great importance regarding undertaking work to listed buildings.

Under Chapter II of the LBCA Act 1990 it states that;

7 No person shall execute or cause to be executed any works for the alteration of a listed building which would affect its character as a building of special architectural or historic interest, unless the works are authorised.

8 Works for the alteration or extension of a listed building are authorised if written consent for their execution has been granted by the local planning authority.

Please advise the local authority group firmly that it is a criminal offence to carry out work which needs listed building consent without obtaining it before hand. They could face a £20,000 fine or up to six months in prison should undertake unauthorised work. Therefore, the works of the new toilet and kitchenette require *listed building consent* from the local planning authority.

Section 8(3) of the Act enables an application for listed building consent to be made after the work to a listed building has taken place. However, I would not recommend this to the group as the work is only authorised from the actual date the consent is given, so altering the building which would affect its character prior to this can still be prosecuted.

I think it would be a good idea for the local community group to meet with a planning officer for an informal discussion before submitting an application. They will be making an application for Listed Building Consent for Alterations, Extension or Demolition of a Listed Building. For a planning application to be valid, the local community group will need to provide the following documentation:

- The application form
- Supporting plans:
 - Location plan, which shows the site area and its surrounding context.
 - Floor plans, which show the proposed works of the toilet and kitchenette
- An ownership certificate stating the ownership of the property
- Design and access statement, which should outline the design principles and concepts that have been applied to the proposed works and how issues relating to access to the development have been dealt with
- Please note that there is no fee for the application. I checked the Portal's fee calculator.

Once a planning application has been received and accompanied by all the necessary information, it should be validated. The Local Planning Authority should then start the determination process and notification will be given to the applicant in writing. Once an application has been deemed valid and the determination process commences, the application is placed on the planning register and given an application reference number. Normally, applications should be validated within three to five working days from the date of receipt, but as this is a listed building, I think it will be validated up to 10 working days.

With regard to the repairs of the roof flashings, I refer to you to section 17(1) of the LBCA Act 1990, which provides that;

Without prejudice to this general power, listed building consent may be granted subject to conditions with respect to preservation of particular features of the building, either as part of it or after it is removed.

This therefore states that the Action Group will require consent to repairs of the roof flashings. I would strongly suggest the Action Group obtain consent from the Local Planning Authority for all modifications and changes to the Grade II Listed building as so to avoid criminal prosecution.

I hope this brief helps with your meeting tomorrow with the action group. You could also refer the Action Group to the English National Heritage website where there is a comprehensive section heritage including listed buildings.

Yours sincerely

Cheryl
Architectural Assistant

Question 9

Date: September 4, 2014
To: Belinda Carter
From: Cheryl Gourley
RE: Recruitment

I have been brainstorming some ways in which NDG Architects might find the right person for this job. As you have suggested, we could advertise in architectural publications. Have you also considered advertising on RIBA Appointments, this is widely used by professionals. Both of these options are obviously open to a very wide audience across the United Kingdom. Since this is only a temporary position, I suggest that we keep the advertising local. So I do not think these are the best solutions for recruitment for this position. Moreover, advertisements in publications can be costly, and as I understand, the practice is looking to minimise our costs as much as possible.

I think our company website is really good place for free advertising. We could post an advertisement under a 'Recruitment' section. Also, I think this is a really good for finding the right person for this job. If a candidate is interested in looking at the company website, it suggests that they would be interested in the type of work they would be working on.

Social media is also very popular for recruiting today. NDG could advertise the position Twitter or LinkedIn, which are widely used by professionals. It is a free method for advertising.

Since we are looking for a Part 1 student, it might be an idea to send an advertisement out to the local architecture universities. I am still in very good contact with my former University and I know they would be happy to send an email advertisement to the students. This would also keep our advertisement local.

There are alternative methods for recruitment such as using recruitment agencies, but I think for this short-term position, this is not the best solution as it takes time and fees to the agent are required. You could however consider this for future permanent positions in the office,

I think been considering your thoughts on employing a one position for the Tally Ho Manor project. As a recent graduate who tried to secure work in a recession, I think it is morally a good thing that you are thinking of employing a Part 1 Architectural Assistant.

There is also an alternative employment option, which you could think about. Have you considered self-employed contractors? Contractors have no statutory employment rights with the office therefore there is no contractual terms to the employment, such as annual salary and contract duration. This would mean the contractor would work for NDG on an ad-hoc basis; therefore you would only commission them for work if and when needed. NDG would not be obliged the contractor offer staff benefits such as pension, health insurance nor holiday entitlement and the contractor would be responsible for their own tax affairs. A contractor does not necessarily have to work in the office, which means we would save on overhead costs in the office. I know many architects were made redundant in the recession and whilst job opportunities are increasing, there are still many

unemployed architects appropriate for this position, so I really believe this may be a good solution for the Tally Ho Manor project.

I have drafted an advert for Building Design. This morning I spoke with a contact in BD and enquired about the advertising fee in the magazine and the difference in price for the size of the advert. Since we are being consciously resourceful for the Tally Ho Manor, I thought I have drafted to 100 words, which is the most inexpensive advert size.

NDG ARCHITECTS

We are looking for an enthusiastic and motivated part 1 architectural assistant for a one-year post, to join our team in Madchester. The candidate will be working on refurbishments as well as new build of some educational and residential works.

The candidate should ideally have a keen eye for detailing and demonstrate good presentation skills. A proactive, keen candidate would work well within this position.

If you think you have the necessary experience for this position, we would like to hear from you.

Please email CV and portfolio to BelindaCarter@ndgarchitects.com

Please let me know your thoughts and if you would like any amendments or changes made.

I was however looking through one of the RIBA Good Practice Guides on Employment. The guide suggests that there are a number of arising issues for architect practices entering into architectural student short employment contracts. The RIBA has produced guidance and model contracts in relation to students and I think you should read over this before employing a Part 1 architectural assistant.

Below is a drafted interview checklist of ten points, which I think are specifically relevant for a Part 1 architectural assistant candidate:

1. What do they know about NDG Architects
2. Why do they want to work for NDG Architects
3. Discuss their strength and weaknesses
4. What salary are they requesting
5. Why we should hire them
6. How do they deal with working under pressure
7. Are you a team player
8. What would you like to learn from this one-year position
9. Describe your work ethic
10. What questions they have for you

I hope this helps. Good luck with recruiting and let me know if I can assist any further with this process.

Yours sincerely

Cheryl
Architectural Assistant

Question 10

Date: September 4, 2014
To: James Noble
From: Cheryl Gourley
RE: City Gallery Extension

Dear James

I hope you are well. This sounds like a potentially exciting project.

After reading your email thoroughly, I really think you should suggest procurement using **management methods**.

A key characteristic of the management procurement route is that the client will appoint a management contractor at an early stage in the project, resulting in greater operational speed and efficiency where early completion is desirable. This in my opinion would be the most efficient solution to create the exhibition space in time to open next summer.

The early involvement of both the contractor and possibly the design specialists with the design team at the early stages of the project can have many advantages. It is a coordinated and collaborative approach with the potential for flexibility in results. Much of the detailed design work will be left to proceed in parallel with the site operations for some work packages and therefore reducing the time needed before the project starts on site. The client will have considerable degree of flexibility on design matters and the design can be adjusted as construction proceeds. Specialist contractors can be selected and appointed and materials on long delivery orders in good time without any of the uncertainties and complexities, which occur in nominated traditional procurement. This also alleviates the need for a lot of storage and allows for construction to proceed whilst the gallery remains open.

I do however think that you could make Sir Jack Daw aware of potential risks of this procurement. Management contracting method depends upon a high degree of confidence and trust between all of the key players. There is unlikely to be a firm contract price before the work actually starts on site, so there will be an uncertainty with costs. Moreover, coordination of design work for components and elements can be difficult, and there will be an attendant risk of costly abortive work. Decisions will more than likely be taken forward on estimates on project information.

There are two ways, which I think the project can be procured under using the management method:

- Construction Management
- Management Contracting

In construct management the construction manager is employed directly by the client and controls all aspects of construction risk. The biggest disadvantage in my mind is that because the employer contracts direct with the package contractors, all the design and construction risks sit with the employer. Therefore I would suggest that this is suitable for experienced client who are use to commissioning projects and have a good understanding of construction projects. I do not know what experience the City Gallery has with construction projects, but I cannot imagine they will have had much experience with complex procurements.

Management contracting on the other hand, I think is the most suitable procurement for the extension, from the two options. The management contractor is employed directly by the client

as a specialist alongside the design team and because the contractor is appointed early on in the process, there is an opportunity to assess and manage the design and construction risks before they have an impact on site.

I have drawn two contract tree diagrams to compare the key players in both the construction management and contract managing procurements and I hope they will aid to help you explain the difference between the two methods.

There are no standard forms available as yet for Construction Management, and developers and contractors typically use specially drafted forms. This is another reason why I suggest you would discourage Sir Jaw Daw from using Contract Management, as Architects involved in this kind of work should engage a lawyer to check the forms and from experience, contentious clauses can derive from bespoke agreements.

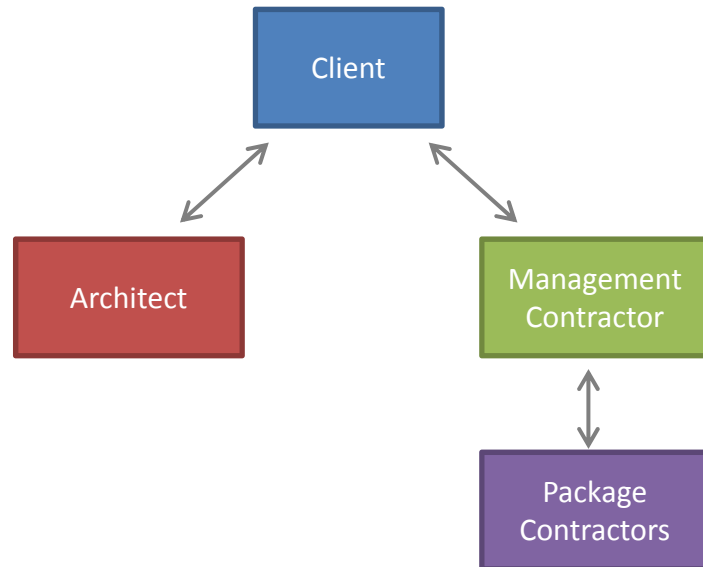
On the other hand, for Management Contracting there is a Standard form of Management Contract issued by the JCT, together with the Standard Works Contracts and an Agreement for use between the client and each works contractor.

I hope this information helps for your next meeting with the committee and please let me know if I can further assist on this in the meantime.

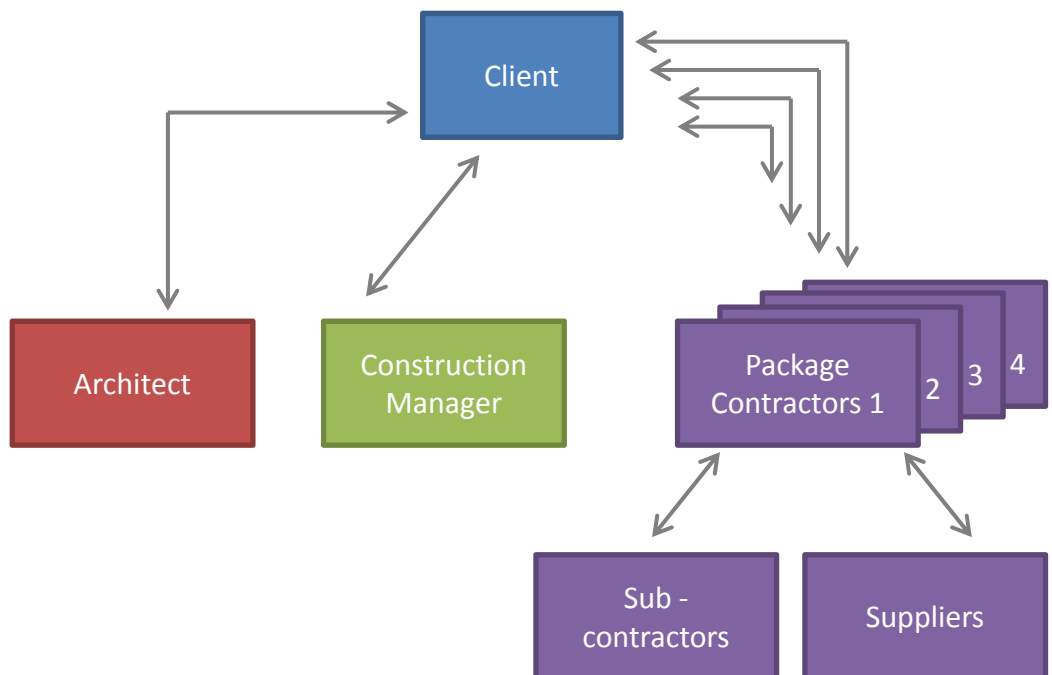
Yours sincerely

Cheryl
Architectural Assistant

Question 10



Key players of management contracting



Key players of construction management